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Athens, 31-12-2024
Protocol No.: 3758

DECISION 57/2024

The Hellenic Data Protection Authority convened at its headquarters on Tuesday, July 18, 2023, at 10 a.m., following a postponement from the meetings of June 13, 2023, June 29, 2023, and July 7, 2023, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigoris Tsolias, as the rapporteur. Also present, without voting rights, were Charikleia Latsiou, Stefania Plota, and Charis Symeonidou, legal auditors - lawyers, as assistant rapporteurs, as well as Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

A request was submitted to the Authority on November 14, 2019 (with protocol no. DPA G/EIS/7859/14.11.2019), in which A reported that the Human Resources Department of the company Hellenic Electricity Distribution Network Operator S.A. (hereinafter referred to as DEDDIE S.A.) did not satisfy his right of access to personal data concerning him. Specifically, A, with his request dated ... and with protocol no. DEDDIE ..., requested to receive: "(...) a complete updated certificate of service changes, as defined in the two-page copy of the email, and within the time frame specified in this email, to use it for my specific secondment to EKOME S.A. in a position as defined in the announcement – invitation no. 19/25-1-2019 for staffing the National Center for Audiovisual Media and Communication (EKOME S.A.)." In response to the above request, the Human Resources Department of DEDDIE S.A. informed, among other things, that: "(...) the aforementioned call for expressions of interest is explicitly addressed to employees serving in agencies of the General Government and the Broader Public Sector, as well as in local authorities of the first and second degree. However, DEI S.A., since August 20, 1991, according to Presidential Decree 360/1991, ceased to be subject to the provisions applicable to the public sector, as redefined by paragraph 1 of article 51 of Law 1892/1990, and with Presidential Decree 333/2000 has been transformed into a Public Limited Company. DEDDIE S.A. is a 100% subsidiary of DEI S.A., which resulted from the spin-off of the Distribution Sector of the latter (DEI S.A.), according to article 123 of Law 4001/2011, which has been operating since May 1, 2012, as a Legal Entity of Private Law (Public Limited Company) and its personnel is connected to the Company through a private law employment relationship. DEI S.A. and consequently DEDDIE S.A. fall under the provisions of Chapter B of Law 3429/2005, are Non-Profit Legal Entities, and are supervised by the Ministry of Environment and Energy. Therefore, the personnel of DEDDIE S.A. does not correspond to the personnel referred to in the second related invitation. We kindly ask for the information of the employee in question."

After the discussion of the above request at the meeting of the Department on February 26, 2020, Decision 23/2020 of the Authority was issued, which found, on the one hand, that A's request was satisfied and the requested certificate of service changes was issued by DEDDIE S.A. (see page 3) and for this reason it was deemed that the above complaint was devoid of subject matter, and on the other hand, it was determined that: "(...) The satisfaction of the relevant request requires the additional processing of personal data held in the filing system maintained for the employee in order to produce the said certificate. Each time the employee requests the issuance of a certificate based on the personal data held by the employer for the purposes specified by law, he essentially requests the issuance of a certificate by the employer.

of the employer additional processing of the data in order to create a new document (certificate) which

does not exist and therefore is not included at the time of the application. Therefore, the rejection of the request for the issuance of the certificate, that is, a document that has not yet been created, cannot constitute a rejection of a request for access to personal data, as the relevant provisions protect the right of the data subject to know all of their data that are maintained in the filing system at the time of the application in order to verify the legality of the collection and retention of the data as previously stated (...) (see para. 7). By the same decision, the Authority referred the matter to a Plenary Session, pursuant to the provision of Article 5a of the Authority's Operating Regulation, as it was in force (Government Gazette B 336/2000, B 859/2008, and B 989/2011), due to its importance and general significance: "(...) whether the provision of personal data from a file maintained by the data controller through certificates, confirmations, etc., i.e., after relevant additional processing from the relevant file maintained – and in contrast to the provision of a copy of the entire relevant file – indeed falls within the concept of the right of access, as shaped under the GDPR and Law 4624/2019."

The Authority, after examining the issues regarding the content and scope of the right recognized for the data subject to access the personal data concerning them and processed, and to obtain a copy of such data, after hearing the rapporteur and the clarifications from the assistant rapporteurs, who attended without voting rights, following thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Article 15 of the GDPR titled "Right of access of the data subject" provides: "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information: [...] 3. The data controller shall provide a copy of the personal data undergoing processing. For additional copies that may be requested by the data subject, the data controller may impose a reasonable fee for administrative costs. If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information shall be provided in a commonly used electronic format. 4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others." Furthermore, Recital 60 of the GDPR explains that the principle of fair and transparent processing, pursuant to Article 5(1)(a) of the GDPR, requires that the data subject be informed of the existence of the processing operation and its purposes.

Additionally, it is emphasized that the data controller should provide the data subject with any further information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the processing of personal data takes place. Moreover, Recital 63 of the GDPR clarifies that: "A data subject should have the right to access personal data concerning them that has been collected and to exercise that right easily and at reasonable intervals, in order to be aware and verify the lawfulness of the processing. (...) Therefore, every data subject should have the right to know and be informed, in particular, for what purposes their personal data is being processed, if possible, for how long the personal data is being processed, which recipients receive the personal data, what logic is applied in any automated processing of personal data, and what the potential consequences of such processing could be, at least when it is based on profiling."

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Profile. The data controller must be able to provide remote access to a secure system through which the data subject can gain direct access to the data concerning them. This right should not adversely affect the rights or freedoms of others, such as professional secrecy or the right to intellectual property, and, in particular, the copyright that protects software (...). Consequently, the right of access under Article 15 of the GDPR allows the data subject to verify that existing personal data concerning them is accurate and that its processing is carried out lawfully. Specifically, the right of access is necessary for the data subject to potentially exercise the rights of rectification, erasure of data, and restriction of processing, as provided in Articles 16, 17, and 18 of the GDPR, respectively, the right to object to the processing of personal data concerning them, as provided in Article 21 of the GDPR, as well as the right to bring a claim in case of damage, as provided in Articles 79 and 82 of the GDPR.

2. The Court of Justice of the European Union (CJEU) in its judgment C-487/21, through a grammatical, systematic, and teleological interpretation of the provision of paragraph 3 of Article 15 of

the GDPR regarding the provision of a copy of personal data, concluded, first, that the broad interpretation of the concept of personal data, which arises from the definition in Article 4(1) of the GDPR, is accepted by case law and is linked to the purpose pursued by the GDPR of ensuring a high level of protection for individuals against the processing of personal data, implies that the relevant concept, and therefore the right of access to the data in question and to obtain a copy of it, is not limited solely to the data that the data controller may acquire, retain, and process, but also includes all information resulting from the processing of personal data concerning an identified or identifiable person, such as, for example, the assessment of an individual's creditworthiness or willingness to pay (para. 26).

Second, the CJEU ruled that Article 15(3) of the GDPR clarifies the practical details for fulfilling the obligation of the data controller, specifying, among other things, in the first sentence, the form in which the data controller must provide the "personal data being processed," namely in the form of a "copy" (para. 31). Therefore, the CJEU concludes: "32. Consequently, Article 15 of the GDPR cannot be interpreted as establishing, in paragraph 3, first sentence, a right different from that provided for in paragraph 1. Moreover, as the European Commission pointed out in its written observations, the term 'copy' does not refer to the document itself, but to the personal data contained therein, which must be complete. Therefore, the copy must contain all personal data being processed."

Thus, the right of access concerns personal data that exists and is retained at the time the access request is submitted by the data subject in order for the latter to verify the lawfulness of the processing at that given time and to exercise any of their rights without the need to invoke a specific reason justifying the access request.

In the aforementioned CJEU judgment C-487/21, it was also determined, thirdly, that in accordance with the principle of fair and transparent processing, as set out in recitals 10 and 60 of the GDPR and the provisions of Articles 5(1)(a) and 12(1) of the GDPR, the data controller must take appropriate measures to provide the data subject with all information mentioned, among others, in Article 15 of the GDPR, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, and that the information is provided in writing or by other means, among

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others, where appropriate, electronically, unless the data subject requests to be provided with the information orally (Recital 38). Therefore, the copy of the personal data being processed, which the data controller is obliged to provide under Article 15(3) of the GDPR, must have all the characteristics that allow the data subject to effectively exercise their rights under this regulation and must, consequently, fully and faithfully reproduce such data (Recital 39). In this regard, the CJEU concludes: "[...] 41. Indeed, in order to ensure that the information provided in this way is easily understandable, as required by Article 12(1), in conjunction with Recital 58 of the GDPR, the reproduction of excerpts from documents or even entire documents or excerpts from databases containing, among other things, the personal data being processed may prove necessary, as the Advocate General pointed out in points 57 and 58 of his Opinion, in cases where, in order to ensure the comprehensibility of the data, their integration into a specific context is required. 42. Specifically, when personal data is generated from other data or when such data comes from free fields, that is, from the absence of indications revealing information about the data subject, the context in which the data is processed is an essential element for the data subject to have transparent access and an easily understandable presentation of the data."

Fourth, with the aforementioned decision, the CJEU, applying the provision of Article 15(4) of the GDPR, ruled that: "44. [...] in the event of a conflict between, on the one hand, the exercise of the right to full access to personal data and, on the other hand, the rights or freedoms of third parties, a balancing of the conflicting rights must be carried out. Whenever possible, methods of communicating personal data that do not infringe the rights or freedoms of third parties should be chosen, taking into account, however, that, as stated in Recital 63 of the GDPR, such factors must not 'result in the denial of the provision of any information to the data subject.'

3. Subsequently, the EDPB in Guidelines 1/2022 on the right of access explains that the right of access consists of three components, namely: a) confirmation as to whether or not personal data is being processed, b) access to such data, and c) the provision of information regarding the processing (Recital 3). It is further clarified that the critical time for assessing the existence of the first aforementioned element (i.e., the processing of personal data) by the data controller is the time of exercising the right, and its satisfaction requires the existence of personal data (availability) at that time (Recital 37). Furthermore, it is explained that the provision of a copy of the data under Article 15(3) of the GDPR does not constitute a distinct right from that of paragraph 1 of the same article, but rather serves as a means of fulfilling access to the data for the fulfillment of the above element under b) (Recitals 22-25). It is then emphasized that the data controller bears the responsibility to decide on a case-by-case basis and in fulfillment of the principle of transparency, the manner of providing the information under Article 15(3), so that it is accessible and comprehensible for the data subject (Recital 150). It is explained in this regard that it is up to the discretion of the data controller to decide, evaluating the specific circumstances of the access request in relation to the data held, the manner of fulfilling the obligation to provide access to the data and to provide a copy of it, i.e., whether the requirement to provide access to the data subject in an easily understandable format (Article 12(1) and Recital 58 of the GDPR) can be achieved by providing the data as it is held in filing systems and databases (reproduction of excerpts from documents or even entire documents) or whether it is appropriate to draft/create documents from different databases of the controller (Recital 152). Finally,

3 The final text of the EDPB Guidelines 1/2022, as approved and published on March 28, 2023, is available at the link https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf

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It is emphasized that the right of access under Article 15 of the GDPR is distinct from the right to access administrative documents based on national legislation, according to which the individual has the right to obtain a copy of the administrative document, without this implying that the right of access under Article 15 of the GDPR excludes the possibility of granting a copy of the document in which the data appears (Recital 154).

4. According to the considerations mentioned in the previous recitals, the provision of copies of the personal data themselves, pursuant to Article 15(3) of the GDPR, which are retained and processed at the time of submission of the relevant request, constitutes a means of satisfying the right of access of the data subject to their personal data exercised under paragraph 2 of this article.

Specifically, the right of access of the data subject under Article 15(1) of the GDPR to personal data held particularly in the filing systems of the data controller must be applied within the framework of the purposes of the GDPR, which include the enhancement and detailed specification of the exercise of the rights of data subjects (CJEU C-487/21 Recitals 33-35, particularly Recital 36 and 39). The data subject has the right to know all the data that may be held in the filing system at the time of the access request and to receive copies of the relevant documents in order to verify the legality of their collection and retention. However, in the event that the data subject requests from the data controller the issuance of a document that will include their personal data, such as the issuance of a certificate or a work confirmation, then a new and independent processing of the already existing personal data is required, which does not merely consist of reproducing documents or excerpts of documents in order for the personal data of the applicant held in a filing system to be integrated into a specific context so that they can be provided in an understandable form. Therefore, the request for the issuance of a new document, with a specific form and content, such as that of the confirmation or certificate, does not fall within the scope of Article 15(1) and (3) of the GDPR.

5. Taking into account the considerations set forth in the immediately preceding recitals of this document, the Authority finds, in relation to the issue referred to in its Decision No. 23/2020, that under Article 15 of the GDPR and Recitals 60 and 63 of the GDPR, and subject to any specific regulatory provision, there is no obligation on the part of the data controller to undertake new and additional processing of the data from the filing system it maintains, for example, by producing/drafting for the first time relevant documents (certificates, confirmations, etc.) that contain the requested personal

data, in order to satisfy the data subject's right of access to them. However, it is at the discretion of the data controller itself to satisfy the right of access by issuing a specific certificate or confirmation following a relevant request from the data subject. Therefore, regarding the subject of the complaint examined in the Authority's Decision 23/2020, ΔΕΔΔΗΕ S.A. did not have, as the data controller, under paragraphs 1 and 3 of Article 15 of the GDPR, the obligation to produce/draft for the first time the requested updated certificate of service changes of the complainant. For the fulfillment of the obligation to satisfy the right of access to personal data under Article 15 of the GDPR, through the provision of a copy of personal data, and regardless of any obligation to comply with the Joint Ministerial Decision No. ΔΙΑΔΠ/Α/17854 (Government Gazette B 1171/11.7.2007) regarding the mandatory ex officio search for certificates required for the issuance of administrative acts, it was sufficient to provide the data to the data subject at the time of exercising the right of access, from the already existing filing systems of the data controller (e.g., screenshots). The data subject's request for the drafting of a certificate, as well as any new document, in which all their personal data will be accurately and transparently recorded does not create an obligation under Article 15 of the GDPR for its issuance.

FOR THESE REASONS

The Authority concludes that the request of the data subject for the issuance of a certificate, confirmation, etc., from the data controller with a specific form and content does not fall within the concept of the right of access under Article 15 of the GDPR, according to what is stated in the reasoning.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou